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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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PART I : SECTION (I) — GENERAL

Government Notifications

L.D.B. 11/81

FOOD ACT, No. 26 OF 1980

REGULATIONS made by the Minister of Health in consultation with the Food Advisory Committee under Section 32 of the Food Act No. 26 of 1980.

DR. RAJITHA SENARATNE,
Minister of Health and Indigenous Medicine.

Colombo,
28th January, 2015.

Regulations

1. These Regulations may be cited as Food (Sweeteners) Regulations 2014 and shall come into operation with effect from 01st July 2015.

2. No person shall use any sweetener in or on any food specially prepared for infants or young children.

3. (1) No person shall import, store, distribute, transport, use, sell, expose or advertise for sale any sweetener other than the sweetener specified in Column II of the Schedule I hereto.

(2) No person shall use in or on any food more than the maximum usable dose specified in the corresponding entry in Column III of the Schedule I hereto.

4. Every person shall ensure that if any food to which a combination of more than one permitted sweetener are to be an admixture, the total of their percentages do not exceed hundred.

For the purpose of this regulation, the quantity of each such sweetener present in such food shall be expressed as a percentage of the maximum quantity of that sweetener appropriate to that food.



5. Where a permitted sweetener or a combination of permitted sweeteners is used in or on any food, there shall be written on the label of the package containing such food -

- (a) a description “contains permitted sweeteners "X" and "Y" and substituting for the letter (s) "X" and "Y" the name (s) of any permitted sweetener used in or on any such food ;
- (b) a warning “Excessive consumption may induce laxative effects” when it contains polyols (Sorbitol, Xylitol, Lactitol, Mannitol, Maltitol, Erythritol) or Isomalt ; and
- (c) when aspartame is present, the warning “Shall not be used by phenyl ketonurics” and “Not recommended for children.”

6. Every warning or description referred to in Regulation 5 shall be written in a clear and legible manner and shall not be hidden, obscured or interrupted by any other written or pictorial matter.

7. (1) The maximum usable dose specified in Column IV of the Schedule I hereto shall be the maximum amount in milligrams of the permitted sweeteners per kilogram of that food, which is ready to eat and been prepared according to any instructions for use.

(2) The maximum usable dose of polyols (Sorbitol, Xylitol, Lactitol, Mannitol, Maltitol, Erythritol) and Isomalt shall be in accordance with good manufacturing practice at a level not higher than is necessary to achieve the intended purpose.

8. The permitted Steviol glycoside extracts shall be in the substances specified in Column I of the Schedule II hereto and the conversion factor shall be as specified in Column II in the corresponding entry of the Schedule II.

9. The calculation of the steviol equivalent for a Steviol glycoside shall be as specified in the Schedule III hereto.

10. Food (Sweeteners) Regulations 2003 made under the Food Act, No. 26 of 1980 published in the *Gazette Extraordinary* No. 1323/1 of 12th January 2004 is hereby rescinded.

11. In these regulations, unless the context otherwise requires -

“Children” means persons under age of twelve years ;

“energy reduced” means that the food to which it refers has an energy value reduced by at least thirty percent as compared with the original or a similar preparation ;

“food” has the same meaning as in the Food Act, No. 26 of 1980 ;

“infants” means children under the age of twelve months ;

“sweetener” means any food additive that is used or intended to be used to impart a sweet taste or as a tabletop sweetener, and does not include carbohydrate sugars ;

“with no added sugar” means that food to which it refers does not contain any of the following —

- (i) added monosaccharides ;
- (ii) added disaccharides ; and
- (iii) other added food used for its sweetening properties ;

“table top sweetener” means saccharin or sodium and calcium salts of saccharin, aspartame, acesulfame K, sucralose, neotame and steviol glycoside ; and

“young children” mean children between one and three years

(Regulation 3(1) and 3(2))

No.	Column I	Column II	Column III	Column IV
	INS No.	Permitted sweetener	Foods in or on which permitted sweeteners may be used	Maximum usable dose
			Desserts and similar products	
01.	420	Sorbitol	1. Water based flavoured desserts-energy reduced or with no added sugar	Limited by GMP
02.	421	Sorbitol syrup	2. Milk and milk derivative based	
03.	953	Mannitol	preparations-energy reduced or with no	
04.	965	Isomalt	added sugar	
		Maltitol	3. Fruit and Vegetable based desserts-energy	
05.	966	Maltitol syrup	reduced or with no added sugar	
06.	967	Lactitol	4. Egg based dessets-energy reduced or with	
07.	968	Xylitol	no added sugar	
		Erythritol	5. Cereal based desserts-energy reduced or with	
			no added sugar	
			6. Breakfast cereals or cereal based products -	
			energy reduced or with no added sugar	
			7. Fat based desserts-energy reduced or with no	
			added sugar	
			8. Edible ices-energy reduced or with no added	
			sugar	
			9. Jams, jellies and marmalades energy reduced - or	
			with no added sugar	
			10. Fruit preparations-energy reduced or with no sugar	
			added, with the exception of those intended for the	
			manufacture of fruit juice based drinks	
			Confectionery	
08.	420	Sorbitol	1. Confectionery with no added sugar	Limited by GMP
		Sorbitol syrup	2. Dried fruit based confectionery - energy	
09.	421	Mannitol	reduced or with no added sugar	
10.	953	Isomalt	3. Starch based confectionery - energy reduced	
11.	965	Maltitol	or with no added sugar	
		Maltitol syrup	4. Chewing gum with no added sugar	
12.	966	Lactitol	5. Cocoa, milk, dried fruit or fat based	
13.	967	Xylitol	sandwich spreads - energy reduced or with	
14.	968	Erythritol	no added sugar	

No.	Column I	Column II	Column III	Column IV
			Miscellaneous	
15.	420	Sorbitol	1. Cocoa based products energy reduced or with no added sugar	Limited by GMP
16.	421	Sorbitol syrup	2. Sauces	
17.	953	Manitol	3. Mustard cream	
18.	965	Isomalt	4. Fine bakery products energy reduced or with no added sugar	
19.	966	Maltitol	5. Products intended for particular nutritional uses	
20.	967	Maltitol syrup	6. Solid food supplements	
21.	968	Lacitol		
			Non - alcoholic drinks	
22.	961	Neotame	1. Water-based flavoured drinks - energy reduced or with no added sugar	20 mg/litre
			2. Milk and milk derivative based or fruit juice based drinks - energy reduced or with no added sugar	20 mg/litre
			Desserts and similar products	
23.	961	Neotame	1. Water-based flavoured desserts - energy reduced or with no added sugar	32 mg/kg
			2. Milk and milk derivative based preparations - energy reduced or with no added sugar	32 mg/kg
			3. Fruit and vegetable based desserts - energy reduced or with no added sugar	32 mg/kg
			4. Egg based desserts - energy reduced or with no added sugar	32 mg/kg
			5. Cereal - based desserts - energy reduced or with no added sugar	32 mg/kg
			6. Breakfast cereals with a fibre content of more than 15% and containing at least 20% bran - energy reduced or with no added sugar	32 mg/kg
			7. Fat based desserts - energy reduced or with no added sugar	32 mg/kg
			Confectionery	
24.	961	Neotame	1. Confectionery with no added sugar	32 mg/kg
			2. Breath freshening micro sweets with no added sugar	200 mg/kg
			3. Strongly flavoured throat pastilles with no added sugar	65 mg/kg
			4. Cocoa or dried fruit based confectionery - energy reduced or with no added sugar	65 mg/kg
			5. Starch based confectionery - energy reduced or with no added sugar	65 mg/kg
			6. Chewing gum with no added sugar	250 mg/kg
			7. Energy reduced tablet form confectionery	15 mg/kg

No.	Column I	Column II	Column III	Column IV
			Miscellaneous	
25.	961	Neotame	1. Snacks : ready to eat, pre-packed, dry savoury starch products and coated nuts 2. Cornets and wafers, for ice-cream, with no added sugar 3. Cocoa, milk, dried fruit or fat based sandwich spreads - energy reduced or with no added sugar 4. Edible ices - energy reduced or with no added sugar 5. Canned or bottled fruit - energy reduced or with no added sugar 6. Energy reduced jams, jellies and marmalades 7. Energy reduced fruit and vegetable preparations 8. Sweet-sour preserves of fruit and vegetables 9. Sweet-sour preserves and semi-preserves of fish and marinades of fish, crustaceans and molluscus 10. Energy reduced soups 11. Sauces 12. Mustard cream 13. Fine bakery products for special nutritional uses 14. Foods intended for use in energy - restricted diets for weight reduction 15. Dietary foods for special medical purposes 16. Food supplements supplied in a liquid form 17. Food supplements supplied in a solid form 18. Food supplements based on vitamins and/or mineral elements and supplied in a syrup-type or chewable form 19. Table top sweeteners	18 mg/kg 60 mg/kg 32 mg/kg 26 mg/kg 32 mg/kg 32 mg/kg 32 mg/kg 10 mg/kg 10 mg/kg 5 mg/litre 12 mg/kg 12 mg/kg 55 mg/kg 26 mg/kg 32 mg/kg 20 mg/litre 60 mg/kg 185 mg/kg Suitable quantity
			Non - alcoholic drinks	
26.	950	Acesulfame K	1. Water based flavoured drinks - energy reduced or with no added sugar 2. Fruit juice based drinks - energy reduced or with no added sugar	350 mg/litre 350 mg/litre
			Desserts and similar products	
27.	950	Acesulfame K	1. Water based flavoured desserts - energy reduced or with no added sugar 2. Milk and milk derivative based preparations - energy reduced or with no added sugar 3. Fruit and vegetable based desserts - energy reduced or with no sugar added 4. Egg based desserts - energy reduced or with no added sugar 5. Cereal based desserts - energy reduced or with no added sugar 6. Fat based desserts - energy reduced or with no added sugar	350 mg/kg 350 mg/kg 350 mg/kg 350 mg/kg 350 mg/kg 350 mg/kg

No.	Column I	Column II	Column III	Column IV
			Confectionery	
28.	950	Acesulfame K	1. Confectionery with no added sugar 2. Cocoa or dried fruit based confectionery - energy reduced or with no added sugar 3. Starch based confectionery - energy reduced or with no added sugar 4. Chewing gum with no added sugar	500 mg/kg 500 mg/kg 1000 mg/kg 2000 mg/kg
			Miscellaneous	
29.	950	Acesulfame K	1. Snacks : ready to eat, prepacked, dry, savoury starch products and coated nuts 2. Canned or bottled fruit - energy reduced or with no added sugar 3. Energy reduced jams, jellies and marmalades 4. Energy reduced fruit and vegetable preparations	350 mg/kg 350 mg/kg 1000 mg/kg 350 mg/kg
			Non - alcoholic drinks	
30.	951	Aspartame	1. Water-based flavoured drinks, - energy reduced or with no added sugar 2. Fruit juice based drinks - energy reduced or with no added sugar	600 mg/litre 600 mg/litre
			Desserts and similar products	
31.	951	Aspartame	1. Water based flavoured desserts - energy reduced or with no added sugar 2. Milk and milk derivative based preparations - energy reduced or with no added sugar 3. Fruit and vegetable based desserts - energy reduced or with no added sugar 4. Egg based desserts - energy reduced or with no added sugar 5. Cereal based desserts - energy reduced or with no added sugar 6. Fat based desserts - energy reduced or with no added sugar	1000 mg/kg 1000 mg/kg 1000 mg/kg 1000 mg/kg 1000 mg/kg 1000 mg/kg
			Confectionery	
32.	951	Aspartame	1. Confectionery with no added sugar 2. Cocoa or dried fruit based confectionery - energy reduced or with no added sugar 3. Starch based confectionery - energy reduced or with no added sugar 4. Chewing gum with no added sugar	1000 mg/kg 2000 mg/kg 2000 mg/kg 5500 mg/kg

No.	Column I	Column II	Column III	Column IV
			Miscellaneous	
33.	951	Aspartame	1. Snacks : ready to eat, prepacked, dry, savoury starch products and coated nuts 2. Canned or bottled fruit - energy reduced or with no added sugar 3. Energy reduced jams, jellies and marmalades 4. Energy reduced fruit and vegetable preparations	500 mg/kg 1000 mg/kg 1000 mg/kg 1000 mg/kg
			Non - alcoholic drinks	
34.	955	Sucralose	1. Water based flavoured drinks - energy reduced or with no added sugar 2. Milk and milk derivative based and fruit juice based drinks-energy reduced or with no sugar added	300 mg/litre 300 mg/litre
			Desserts and similar products	
35.	955	Sucralose	1. Water based flavoured desserts - energy reduced or with no added sugar 2. Milk and milk derivative based preparations - energy reduced or with no added sugar 3. Fruit and vegetable based desserts - energy reduced or with no added sugar 4. Egg based desserts - energy reduced or with no added sugar 5. Cereal based desserts - energy reduced or with no added sugar 6. Breakfast cereals containing more than 15% fibre and minimum 20% bran - energy reduced or with no added sugar 7. Fat based desserts - energy reduced or with no added sugar 8. Edible ices-energy reduced or with no added sugar	400 mg/kg 400 mg/kg 400 mg/kg 400 mg/kg 400 mg/kg 400 mg/kg 400 mg/kg 320 mg/kg
			Confectionery	
36.	955	Sucralose	1. Confectionery with no added sugar 2. Breath freshening micro sweets, with no added sugar 3. Strongly flavoured freshning throat pastilles with no added sugar 4. Energy reduced tablet form confectionery 5. Cocoa or dried fruit based confectionery - energy reduced or with no added sugar 6. Starch based confectionery - energy reduced or with no added sugar 7. Chewing gum with no added sugar	1000 mg/kg 2400 mg/kg 1000 mg/kg 200 mg/kg 800 mg/kg 1000 mg/kg 3000 mg/kg

No.	Column I	Column II	Column III	Column IV
			Miscellaneous	
37.	955	Sucralose	1. Snacks : ready to eat, pre-packed, dry savoury starch products and coated nuts 2. Cornets and wafers, for ice-cream, with no added sugar 3. Cocoa, milk, dried fruit or fat based sandwich spreads - energy reduced or with no added sugar 4. Canned or bottled fruit - energy reduced or with no added sugar 5. Energy reduced jams, jellies and marmalades 6. Energy reduced fruit and vegetable preparations 7. Sweet-sour preserves of fruit and vegetables 8. Sauces 9. Energy reduced soups 10. Mustard cream 11. Fine bakery products - energy reduced or with no added sugar	200 mg/kg 800 mg/kg 400 mg/kg 400 mg/kg 400 mg/kg 400 mg/kg 180 mg/kg 450 mg/kg 45 mg/litre 140 mg/kg 700 mg/kg
			Non - alcoholic drinks	
38.	954	Saccharin and its sodium potassium and calcium salts	Water based flavoured drinks - energy reduced or with no added sugar (carbonated or non-carbonated)	80 mg/litre
			Desserts and similar products	
39.	954	Saccharin and its sodium potassium and calcium salts	1. Water based flavoured desserts - energy reduced or with no added sugar 2. Fruit and vegetable based desserts - energy reduced or with no added sugar 3. Egg based desserts - energy reduced or with no added sugar 4. Cereal based desserts - energy reduced or with no added sugar 5. Fat based desserts - energy reduced or with no added sugar	100 mg/kg 100 mg/kg 100 mg/kg 100 mg/kg 100 mg/kg
			Confectionery	
40.	954	Saccharin and its sodium potassium and calcium salts	1. Confectionery with no added sugar 2. Cocoa or dried fruit based confectionery - energy reduced or with no added sugar 3. Starch based confectionery - energy reduced or with no added sugar	500 mg/kg 500 mg/kg 300 mg/kg

No.	Column I	Column II	Column III	Column IV
			Miscellaneous	
41.	954	Saccharin and its sodium potassium and calcium salts	1. Snacks : ready to eat, pre packed, dry savoury starch products and coated nuts 2. Cornets and bottled fruit-energy reduced or with no added sugar 3. Energy reduced jams, jellies and marmalades 4. Energy reduced fruit and vegetable preparations	100 mg/kg 200 mg/kg 200 mg/kg 200 mg/kg
			Non - alcoholic drinks	
42.	960	Steviol glycoside	1. Flavoured drinks (carbonated and non-carbonated) - energy reduced or with no added sugar 2. Flavoured fermented milk products including heat treated products only - energy reduced products or with no added sugar 3. Alcohol free beer	80 mg/litre* 100 mg/litre* 70 mg/litre*
			Desserts and similar products	
43.	960	Steviol glycoside	1. Water based fruit flavoured desserts, - energy reduced or with no added sugar 2. Egg based desserts - energy reduced or with no added sugar 3. Cereal based desserts - energy reduced or with no added sugar 4. Breakfast cereals with a fibre content of more than 15% and containing at least 20% bran - energy reduced or with no added sugar 5. Fat based desserts - energy reduced or with no added sugar	100 mg/kg* 100 mg/kg* 100 mg/kg* 330 mg/kg* 100 mg/kg*
			Confectionery	
44.	960	Steviol glycoside	1. Confectionery with no added sugar 2. Breath-freshening micro sweets, with no added sugar 3. Strongly flavoured throat pastilles with no added sugar 4. Cocoa or dried fruit based confectionery - energy reduced or with no added sugar 5. Cocoa and chocolate products - energy reduced or with no added sugar 6. Chewing gum with no added sugar 7. Decorations, coatings and fillings except fruit based filling, only confectionery with no added sugar 8. Decorations, coatings and fillings except fruit based filling, only cocoa and dried fruit based - energy reduced or with no added sugar	350 mg/kg* 2000 mg/kg* 670 mg/kg* 270 mg/kg* 200 mg/kg* 3300 mg/kg* 330 mg/kg* 270 mg/kg*

No.	Column I	Column II	Column III	Column IV
			Miscellaneous	
45.	960	Steviol glycoside	- Potato, cereal, flour and starch based snacks - Processed nuts - Cocoa, milk, dried fruit or fat based sandwich spreads - energy reduced or with no added sugar - Dried fruit-based sandwich spreads - energy reduced or with no added sugar - Edible ices - energy reduced or with no added sugar - Jams, jellies, marmalades and sweetened chestnut puree-energy reduced - Fruit and vegetable preparations - energy reduced - Fruit nectars and vegetable nectars and similar products energy reduced or with no added sugar - Sweet-sour preserves of fruit and vegetables - Sweet-sour preserves and semi-preserves of fish and marinads of fish, crustaceans and molluscus - Soups - energy reduced - Soyabean Sauce (fermented or unfermented) - Other Sauce (fermented or unfermented) - Foods intended for use in energy - restricted diets for weight reduction - Dietary foods for special medical purposes - Food supplements supplied in a liquid form - Food supplements supplied in a solid form including capsules and tablets and other forms - Food supplements supplied in a syrup type or chewable form - Table top sweeteners	20 mg/kg* 20 mg/kg* 330 mg/kg* 200 mg/kg* 200 mg/kg* 200 mg/kg* 200 mg/kg* 100 mg/kg* 100 mg/kg* 200 mg/kg* 40 mg/litre* 175 mg/litre* 120 mg/kg* 270 mg/kg* 330 mg/kg* 200 mg/litre* 670 mg/kg* 1800mg/litre* Suitable quantity

Note 1 : * as steviol equivalents

SCHEDULE II

(regulation 8)

	Column I	Column II
	Steviol glycoside	Conversion factor
1.	Steviol	1.00
2.	Stevioside	0.40
3.	Rebaudioside A	0.33
4.	Rebaudioside B	0.40
5.	Rebaudioside C	0.33
6.	Rebaudioside D	0.28
7.	Rebaudioside F	0.34
8.	Dulcoside A	0.40
9.	Rubusoside	0.50
10.	Steviolbioside	0.50

SCHEDULE III

(regulation 9)

1. Calculation of Steviol equivalent :

$$[SE] = CF \times [SG]$$

Where

CF = Conversion Factor as listed in column II of Schedule II for the corresponding steviol glycoside in column I of Schedule II

[SG] = concentration of individual steviol glycoside

[SE] = concentration as steviol equivalents

2. Examples for calculation of steviol equivalent :

2.1 Example of calculation of steviol equivalents for a single glycoside :

A preparation of 100 mg/kg of Rebaudioside B contains $100 \times 0.40 = 40$ mg/kg steviol equivalents.

2.2 Example of calculation of steviol equivalents for a mixture of glycoside :

For a preparation containing 100 mg/kg of a mixture of 90% Stevioside, 5% Rebaudioside B and 5% Rebaudioside A, the steviol equivalent is

$$[(0.9 \times 0.40) + (0.05 \times 0.40) + (0.05 \times 0.33)] \times 100 = 39.65 \text{ mg/kg}$$

2.3 Example of calculation for maximum permitted level of a steviol glycoside preparation :

To calculate the maximum permitted level of a steviol glycoside preparation which contains 90% Stevioside, 5% Rebaudioside B and 5% Rebaudioside A, in a food where the permission is 160 mg/kg (steviol equivalents).

To determine the equivalence for this preparation :

$$[0.90 \times (160 / 0.40)] + [0.05 \times (160 / 0.40)] + [0.05 \times (160 / 0.33)] = 404 \text{ mg/kg.}$$

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